

P O R T E R | S C O T T

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CSAA INSURANCE EXCHANGE

ELECTRONICALLY

FILED

*Superior Court of California,
County of San Francisco*

07/17/2026

Clerk of the Court

BY: JEFFREY FLORES

Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Case No.: CGC-25-631802

Plaintiff,

v.

CSAA INSURANCE EXCHANGE;
DOES 1 through 50, inclusive;

Defendant.

**MEMORANDUM OF POINTS AND
AUTHORITIES IN SUPPORT OF
DEFENDANT CSAA INSURANCE
EXCHANGE'S MOTION FOR
ATTORNEYS' FEES AND COSTS UNDER
C.C.P. § 425.16(C)**

Date: August 26, 2026

Time: 9:00 a.m.

Dept: 302

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

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8 **I. INTRODUCTION**

Defendant CSAA INSURANCE EXCHANGE hereby submits its Memorandum of Points and Authorities in support of its Motion for Attorney’s Fees pursuant to Code Civ. Proc. § 425.16(c) and this Court’s July 1, 2026 Order granting Defendant’s Anti-SLAPP motion.

Plaintiff’s claims all arise from protected litigation conduct and are squarely subject to the Anti-SLAPP statute. In light the Court’s granting of Defendant’s Anti-SLAPP motion, Defendant now moves for fees and costs incurred in litigating this case.

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12 **II. BRIEF FACTS**

Plaintiff’s allegations in the pleadings improperly focus on Defendant’s litigation activity in defending against Plaintiff’s underlying personal injury case from 2021. That underlying case was submitted to a jury in April 2025, and the jury rendered a defense verdict.

On February 25, 2026, Plaintiff filed a First Amended Complaint (“FAC”). That pleading did not alter the fundamental, and problematic, nature of the allegations, insofar as they continued to target Defendant for engaging in litigation conduct. In short, the FAC targeted Defendant for its litigation conduct while litigating Plaintiff’s personal injury claims.

Given the nature of the FAC’s allegations, on April 9, 2026, Defendant filed with the Court and served on Plaintiff by Certified Mail and courtesy copy via email a copy of Defendant’s Special Motion to Strike per Code Civ. Proc. § 425.16 (“Anti-SLAPP motion”). (*Declaration of Tyler J. O’Connell in Support of Motion for Attorneys’ Fees* [hereinafter: “O’Connell Decl.”], ¶ 2.) Defendant’s Anti-SLAPP motion is based on the nature of Plaintiff’s allegations as contained in the FAC. Plaintiff’s allegations squarely target Defendant’s litigation conduct all from Plaintiff’s underlying personal injury jury trial—which Plaintiff lost by defense verdict in April 2025. (*O’Connell Decl.*], ¶ 3.)

Prior to filing the Anti-SLAPP motion, Defendant’s counsel informed Plaintiff in writing, and on multiple phone calls, that Defendant would soon be filing an Anti-SLAPP motion should Plaintiff not withdraw the FAC, in its entirety—as the entirety of the purported legal theories in Plaintiff’s FAC focus inextricably on Defendant’s protected litigation conduct. (*O’Connell Decl.*], ¶ 4.) Plaintiff refused to withdraw his FAC, in writing and on two meet and confer phone calls. And Defendant’s Anti-SLAPP motion was properly filed on April 9, 2026. (*O’Connell Decl.*], ¶ 5.)

1 On June 24, 2026, Defendant's Anti-SLAPP motion came for hearing and the Court granted
2 Defendant's Anti-SLAPP motion, in its entirety, thereafter on July 1, 2026. (*O'Connell Decl.*], ¶ 6, **Ex. A**
3 – *Minute Order on Anti-SLAPP.*)

4 Defendant had previously attached to Defendant's Reply to Opposition to Anti-SLAPP, a copy of
5 legal invoicing incurred in this matter, for purposes of attorneys' fees recovery. That invoicing, attached
6 to Reply, was limited only to those matters directly related to preparing, meet and confer efforts regarding,
7 drafting, filing, and appearing in Court with respect to Defendant's Anti-SLAPP motion. This created a
8 reduced attorneys' fees amount when compared to the full amounts billed in legal fees on this case.
9 (*O'Connell Decl.*], ¶ 7.)

10 However, after a review and analysis of controlling statutory and case authorities, Defendant now
11 submits a revised legal fees invoicing, which no longer reduces the recoverable attorneys' fees. (*O'Connell*
12 *Decl.*], ¶ 8.) Defendant's attorney's fees in this action are invoiced at a billable rate of \$210 per hour and
13 counsels (and staff) spent 165.60 hours litigating this case in its entirety, including preparing Defendant's
14 Anti-SLAPP motion, supporting Declarations, review and analysis of this motion, correspondences with
15 clients and Plaintiff, gathering and marking exhibits, and preparing for and attending hearings on multiple
16 motions. Hence, in total Defendant's attorney's fees and costs expended in this case are: **\$32,928.27.**
17 (*O'Connell Decl.*], ¶ 9, **Exs. B-C.**)

18 III. **LEGAL STANDARD**

19 The California State Legislature has found and determined "that there has been a disturbing
20 increase in lawsuits brought primarily to chill the valid exercise of the constitutional rights of freedom of
21 speech and petition for the redress of grievances. The Legislature finds and declares that it is in the public
22 interest to encourage continued participation in matters of public significance, and that this participation
23 should not be chilled through abuse of the judicial process. To this end, this section shall be construed
24 broadly...

25 (c) a prevailing defendant on a special motion to strike shall be entitled to recover that Defendant's
26 attorney's fees and costs."

27 "Attorney fees are **mandatory** to the prevailing defendant and the amount awarded to a defendant
28 on a successful anti-SLAPP motion is within the discretion of the trial court." (*Trapp v. Naiman* (2013))

218 Cal.App.4th 113, 122.) Further, “trial courts are to use the lodestar method when determining an award of attorney fees under the anti-SLAPP statute. This approach ensures that the trial court’s analysis is objective and that the amount awarded is not arbitrary. Under the lodestar method, the trial court tabulates the attorney fee touchstone, or lodestar, by multiplying the number of hours reasonably expended by the reasonable hourly rate prevailing in the community for similar work. (*Frym v. 601 Main Street LLC* (2022) 82 Cal.App.5th 613, 620-621) (*internal quotations omitted.*)

Indeed Code Civ. Proc. § 425.16(c) does not limit attorneys’ fees recover to only those amounts incurred in preparing and filing the Anti-SLAPP motion. The Code provides for “Defendant’s attorney’s fees and costs,” in full. Code Civ. Proc. § 425.16(c).

Here, Defendant’s counsels and billable staff spend a total of 165.60 hours litigating this case. Defendant’s counsel’s hourly rate was \$210 per hour. This hourly rate is reasonable given the prevailing hourly rate in the San Francisco / Bay Area community, where this action was filed.

Further, the number of hours is justified, and reasonably expended, given multiple factors. First, Plaintiff’s nearly 30-page FAC contains a wide-ranging series of allegations, which required Defendant’s counsel to peruse an entire underlying Court record, from Plaintiff’s personal injury jury trial. The underlying record was a 4-year long litigation, culminating in a 4-month long jury trial (with multiple continuances and recesses). That underlying record was very lengthy and took considerable time to parse through for evidence in support of the Anti-SLAPP motion. Second, Defendant’s counsel also engaged in extensive meet and confer efforts with Plaintiff in hopes of avoiding incurring these fees, which took additional time. Third, Plaintiff made this case more time consuming in multiple ways including through his filing of many, many motions, “Bench Briefs,” “Supplemental Oppositions,” and other filings in violation of the Code and Rules of Court. Plaintiff also served an incredibly lengthy series of discovery requests, correspondences, letters, emails, and even referrals to the State Bar, California Department of Insurance, California DOJ Office of Civil Rights, and other public entities. Plaintiff admitted to using artificial intelligence large language models (aka: chatbots) in drafting all these items. This created a veritable deluge of paper, upon Defendant’s counsel’s office, seemingly by design to consume as much of Defendant’s counsel’s time as possible.

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1 Finally, Defendant's costs are all reasonable and reflective of the filing, service, and mailing costs
2 incurred in this case up up to the date of this motion.

3 Defendant is entitled to all attorneys' fees and costs incurred in litigating this completely meritless
4 case, culminating in the July 1, 2026 ruling by this Court granting the Anti-SLAPP motion.¹

5 **IV. CONCLUSION**

6 Defendant respectfully requests this Court grant Defendant's its attorneys' fees and costs incurred
7 in litigating this case, which total **\$32,928.27.**

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9 Dated: July 17, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

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11 *Tyler J. O'Connell*

12 By _____
13 Chad S. Tapp
14 Tyler J. O'Connell
Attorneys for Defendant
CSAA INSURANCE EXCHANGE;

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28 ¹ It bears mention that Plaintiff has continued to engage in his AI-drafted deluge of paper upon Defendant's counsel's office—long after the July 1, 2026 hearing, and right up to the date of filing this motion—in a misguided effort to harass Defendant's counsel given Defendant's victory on the Anti-SLAPP motion.

PROOF OF SERVICE

At the time of service, I was over 18 years of age and not a party to this action. My business address is 2180 Harvard Street, Suite 500, Sacramento, California 95815. On July 17, 2026, I served the following document: **MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF DEFENDANT CSAA INSURANCE EXCHANGE, CARBONE, SMITH & KOYAMA, AND MICHAEL R. CHAMBERS' MOTION FOR ATTORNEY'S FEES**

	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
X	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

Addressed as follows:

PLAINTIFF, IN PRO PER

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
soltrinox@gmail.com

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed at Sacramento, California on July 17, 2026.

Serena Blithe

Serena Blithe